



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
AIR QUALITY DIVISION



PHILLIP D. ROOS
DIRECTOR

August 11, 2026

VIA EMAIL

Jeff Adler, President
Tuscola Energy - Richfield Gas Plant
920 North Water Street, Suite 213
Bay City, Michigan 48708

SRN: B5462, Lapeer County

Dear Jeff Adler:

VIOLATION NOTICE

On July 2, 2026, the Department of Environment, Great Lakes, and Energy (EGLE), Air Quality Division (AQD) received a report for the month of May 2026, from Tuscola Energy - Richfield Gas Plant (Company) located at 7770 McTaggart Road, North Branch, Michigan. The purpose of this records submittal was to determine the Company's compliance with the requirements of the federal Clean Air Act; Part 55, Air Pollution Control, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended, MCL 324.5501 *et seq*; the Air Pollution Control Rules, Mich Admin Code, R 336.1101 *et seq*; the conditions of Renewable Operating Permit (ROP) No. ROP0000005 v5.1; and the conditions of Permit to Install (PTI) No. 85-23.

Violation:

During the records review, the following violation was observed:

Process Description	Permit/Rule Violated	Comments
EUGAS-TREATING	ROP, EUGAS-TREATING, Special Condition (SC) I.1 and PTI 85-23, EUGAS-TREATING, SC I.1.	Exceedance of 24-hour sulfur dioxide (SO ₂) emission limit on May 28 and 29, 2026.

The conditions of the ROP/PTI, EUGAS-TREATING, SC I.1 limit the emissions of SO₂ to 2,227 lbs/24-hour period.

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The report provided demonstrates that the emissions of SO₂ from the EUGAS-TREATING process equipment were 4,429.60 lbs and 3,826.10 lbs on May 28 and 29, 2026, respectively, which exceeds the permitted emission limit. This is a violation of the ROP/PTI, EUGAS-TREATING, SC I.1.

Next Steps:

A written response should be submitted through MiEnviro Portal by **September 1, 2026**, and include all of the following:

- the dates the violation occurred;
- an explanation of the causes and duration of the violation;
- whether the violation is ongoing;
- a summary of the actions that have been taken and are proposed to be taken to correct the violation and,
- the dates by which these actions will take place; and what steps are being taken to prevent a reoccurrence.

If the Company believes the above observations or statements are inaccurate or do not constitute violations of the applicable legal requirements cited, provide appropriate information to explain your position in your response to this letter.

Thank you for your attention to resolving the violation cited above and for your cooperation in this matter. If you have any questions regarding the violation or the actions necessary to bring this facility into compliance, please contact me at the number listed below.

Sincerely,



Daniel A. McGeen
Environmental Quality Analyst
Air Quality Division
517-648-7547

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cc: Annette Switzer, EGLE

Christopher Ethridge, EGLE

Brad Myott, EGLE

Jenine Camilleri, EGLE

Robert Byrnes, EGLE